

SENATE No. 176

The Commonwealth of Massachusetts

PRESENTED BY:

Paul R. Feeney

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act encouraging the adoption of smart growth and starter home zoning districts.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Paul R. Feeney</i>	<i>Bristol and Norfolk</i>	
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>5/20/2025</i>

SENATE No. 176

By Mr. Feeney, a petition (accompanied by bill, Senate, No. 176) of Paul R. Feeney for legislation to encourage the adoption of smart growth and starter home zoning districts. Community Development and Small Businesses.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 131 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act encouraging the adoption of smart growth and starter home zoning districts.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 "Chapter 40R of the General Laws, as appearing in section 185 of chapter 7 of the acts of
2 2023, is hereby amended in section 9 by striking out subsections (a) and (b) and inserting in
3 place thereof the following:-

4 (a) The commonwealth shall pay from the trust fund or other funds from appropriations
5 or other money authorized by the general court a zoning incentive payment, according to the
6 following schedule:

7 Projected Units of New Construction Payment Up to

8 20 \$20,000

9 21 to 100 \$150,000

10 101 to 200 \$400,000

11 201 to 500 \$740,000

12 501 or more \$1,200,000

13 Subject to any conditions imposed by the department as a condition of approving a smart
14 growth zoning district or starter home zoning district, the zoning incentive payment shall be
15 payable upon confirmation of approval of the district by the department. The projected number
16 of units shall be based upon the zoning adopted in the smart growth zoning district or starter
17 home zoning district.

18 (b) The commonwealth shall pay from the trust fund or other funds from appropriations
19 or other money authorized by the general court a one-time density bonus payment to each city or
20 town with an approved smart growth zoning district and a one-time production bonus payment to
21 each city or town with an approved starter home zoning district. This payment shall be \$6,000
22 for each housing unit of new construction created in the smart growth zoning district and \$6,000
23 for each housing unit of new construction created in the starter home zoning district. The amount
24 due shall be paid on a unit-by-unit basis in accordance with department regulations, upon
25 submission by a city or town of proof of issuance of a building permit for a particular housing
26 unit or units within the district. "